

Court No. - 3

Case :- WRIT - C No. - 6440 of 2024

Petitioner :- Lalla Ji Siyaram Smarak Madhyamik Vidyalaya
Thru. Its Manager Versha Verma

Respondent :- State Of U.P. Thru. Addl. Chief Secy. Revenue
Lko And 6 Others

Counsel for Petitioner :- Raj Karan Singh

Counsel for Respondent :- C.S.C., Manish Jauhari, Ram Kumar
Singh

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Shree Prakash Singh, J.

Heard learned counsel for the petitioner, learned Standing Counsel who appears on behalf of the State-respondents and Sri Manish Jauhari on behalf of the respondent nos. 6 and 7.

This writ petition has been filed by the petitioner with the following main prayers:-

"(i) Issue a writ, order or direction in the nature of certiorari quashing the Impugned Order/Inquiry Report dt. 12.07.2024 passed by the Opposite Party No. 5 (Lekhpal-Baddupur, Tehsil- Fatehpur, District-Barabanki) Contained as Annexure No. 1 in the interest of Justice.

(ii) Issue a writ, order or direction in the nature of mandamus commanding the Opposite Party No. 6 to consider and decide the Representation dt. 26.12.2023/06.01.2024 Contained as Annexure No. 7 & 8 in the interest of Justice.

(iii) Issue a writ, order or direction in the nature of mandamus commanding the Opposite Party No. 1 to 5 to permit the construction of building wark of Lalla Ji Siyaram Smarak Madhyamik Vidyalaya within stipulated period in the interest of Justice."

It has been submitted by the learned counsel for the petitioner that the petitioner had earlier approached this Court by filing Writ-C No.4430 of 2024, which was disposed of by this Court on 17.5.2024 with certain observations. In pursuance of such observations, the petitioner approached the Land Management Committee but the Land Management Committee has done nothing in the matter instead the revenue official has submitted an enquiry report dated 12.7.2024 against the petitioner, copy of which has been filed as Annexure 1 to the writ petition.

Sri Manish Jauhari has pointed out that in so far as the charges against the respondent no.6 is concerned, the petitioner has not

made an appropriate application in the prescribed format as provided under clause 4.45 of U.P. Electricity Supply Code and, therefore, the petitioner be directed to approach the respondent no.6 by way of moving an appropriate application in the prescribed format as per the U.P. Electricity Supply Code.

We have gone through the order dated 17.5.2024 passed by the co-ordinate Division Bench, which is being quoted hereinbelow:-

"(1) Heard the learned counsel for the petitioner at length and the learned Standing counsel who appears for the State-respondents nos.1 to 4 and Shri Mohan Singh, who appears for the Opposite party no.5.

(2) This petition has been filed by the petitioner for the following main prayer:-

"1) Issue a writ, order or direction in the nature of Certiorari quashing the Impugned Order/ Notice dated 03.05.2024 passed by the opposite party no.5 (Secretary- Land Management Committee- Baddupur, Tehsil Fatehpur, District Barabanki), contained as Annexure No.1, in the interest of justice."

(3) It has been submitted by the learned counsel for the petitioner that the petitioner is running a Madhyamik Vidyalaya and has come through its Manager namely Versha Verma, because the land in question i.e. Gata No.1260 Min Admeasuring 0.318 Hectare was reserved in the memory of Lallaji Ji Siyaram Smarak Madhyamik Vidyalaya , Barabanki, who was founder of the School. The petitioner is raising construction which has been stopped by means of the impugned order. The School was in existence since long and the petitioner is not making any construction but in the impugned notice a mention has been made that the petitioner is constructing over the land reserved for Play Ground. It has been submitted that in the Notice time has been given to the petitioner to file reply to various queries Point nos.1 to 4 as mentioned in the Notice but at the same time, the construction which the petitioner is making, has been stopped. It has been submitted by the learned counsel for the petitioner that it is only because of political pressure of the Ruling Party that the impugned Notice has been issued.

(4) Learned Counsel appearing for the respondents has pointed out the order passed by this Court in a Public Interest Litigation No.370 of 2024 [Sahajram Verma Vs. State of U.P. and others] which was filed praying for a direction to the concerned Authorities to remove the alleged illegal encroachment on the land over Gata No.1260 Min Admeasuring 0.318 Hectare, situated in Village Baddupur. The Court observed that the petitioner has appropriate remedy under Section 67 of the U.P. Revenue Code, it was also observed that in case the petitioner files any such application under Section 67 of the U.P. Revenue Code before the Competent Authority he shall decide the same within the statutory period of 90 days from the date of its presentation after affording an opportunity of hearing to all concerned including the alleged encroacher.

(5) It has been submitted by the counsel for the respondents that the petitioner has been asked to file reply to the Show Cause Notice. The

petitioner has already submitted a reply on 04.05.2024 to the Land Management Committee, a copy of which has been filed as Annexure No.12 to the petition. It is also the case of the respondents that the land of the Gaon Sabha recorded as Navin Parti was given to the School only for the purposes of Play Ground but the petitioner has raised a boundary wall and encroached the said land and is raising construction which has been stopped.

(6) This Court finds no good ground to show interference as prayed for.

(7) This writ petition is finally disposed of with a direction to the petitioner to approach the Land Management Committee who shall consider the reply of the petitioner strictly in accordance with law and then proceed further in the matter."

The petitioner has raised a grievance against the Integrated Grievance Redressal System Portal report on complaint made by it on 19.6.2024. We deem it unnecessary to interfere in such report where the petitioner has itself admitted that map submitted by it for raising construction has not yet been sanctioned.

This writ petition is **disposed of** with a direction to the petitioner to approach the respondent no.6 by way of appropriate application. The petitioner may also approach the Sub Divisional Officer, Fatehpur, District Barabanki with a copy of any order passed by the respondent no.6.

Order Date :- 29.7.2024

Ram Murti